

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Leslie A. Swain
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Viera, Sam J.
CDC No.: AG5980
Case No.: BA354035-03
Date of Sentence: 2/7/2011

Dear Honorable Leslie A. Swain:

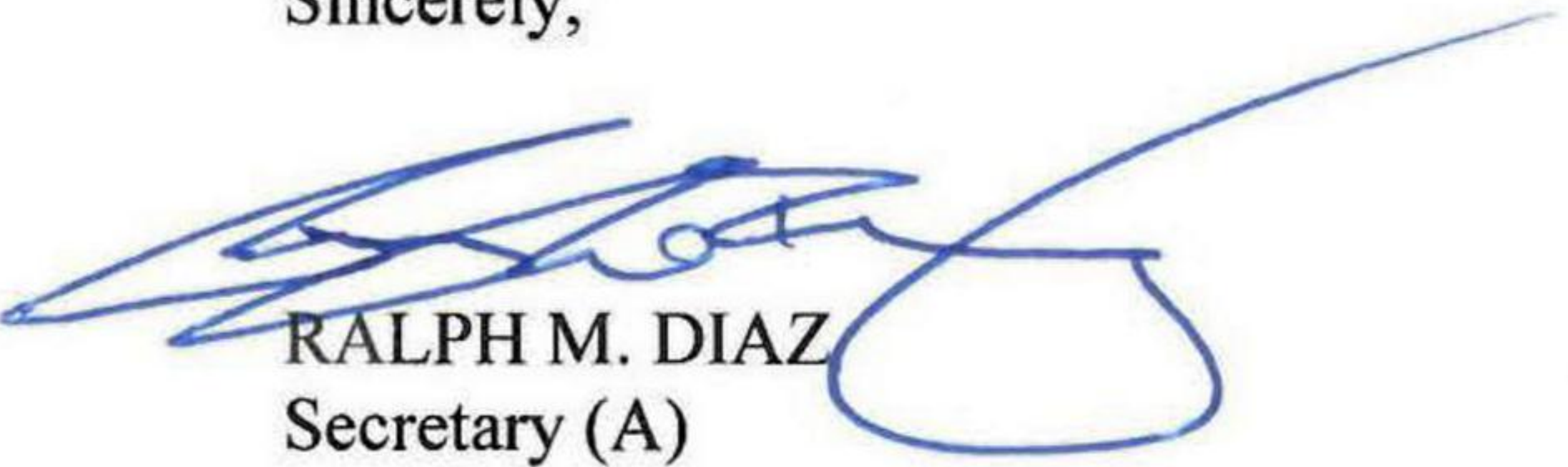
The purpose of this letter is to provide the court with authority to resentence Sam J. Viera pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Viera was sentenced in 2011, and was convicted of section 245, subdivision (A)(1), ASSAULT WITH A DEADLY WEAPON. The trial court sentenced inmate Viera on 2/7/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Viera's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Viera's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

AG5980

OK'D TO GO S/W NOTED

FEB 21 2011

Mw

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SAM J. VIERA	DOB: 02-05-90	☒ BA354035-03 -A
AKA:		☐ BA364746-01 -B
CII NO.: 12407498	☐ NOT PRESENT	☐ -C
BOOKING NO.: 1835468	☐ AMENDED ABSTRACT	☐ -D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		
DATE OF HEARING: 02-07-11	DEPT. NO.: 131	JUDGE: LESLIE A. SWAIN
CLERK: DAVID YAGUCHI	REPORTER: MARY DAVIS	PROBATION NO. OR PROBATION OFFICER: X- 2025379
COUNSEL FOR PEOPLE: SHEN - JAY FERN	COUNSEL FOR DEFENDANT: EDMONT T. BARRETT	☐ IMMEDIATE SENTENCING
		☒ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Refer to Item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2A	PC	245(A)(1)	ASSAULT WITH A DEADLY WEAPON	2009	11-03-10	X			U							4	
1B	PC	4502(A)	CUSTODIAL POSSESSION OF WEAPON	2009	02-07-11	X			L				X			2	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2A	12022.7(A) PC	3	186.22(B)(C)(1)	10			13

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

6. TOTAL TIME ON ATTACHED PAGES:

COUNTY	CASE NUMBER

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 19

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SAM J. VIERA			
BA354035-03 -A	BA364746-01 -B	-C	-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
 Case B: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
 Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ Amount to be determined to victim(s)* Restitution Fund
 Case B: \$ Amount to be determined to victim(s)* Restitution Fund
 Case C: \$ Amount to be determined to victim(s)* Restitution Fund
 Case D: \$ Amount to be determined to victim(s)* Restitution Fund

* Victim name(s), if known, and amount breakdown in item 11, below. * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
 includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
 Case B: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
 includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
 Case C: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
 includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
 Case D: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
 includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$80.00 per PC 1465.8.

e. Criminal Conviction Assessment: \$60.00 per GC 70373.

10. TESTING a. Compliance with PC 296 verified b. AIDS per PC 1202.1 c. other (specify):

11. Other orders (specify):

NO CREDITS ARE AWARDED IN THIS MATTER (BA364746-01)

12. IMMEDIATE SENTENCE:

Probation to prepare and submit
 Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HISPANIC

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	801	697	104 ☐ 4019 ☐ 2933.1
B	0	0	0 ☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
02-07-11		DMH	CDCR

15. The defendant is remanded to the custody of the sheriff ☐ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE YANA J. WILLIAMS	DATE 02-10-11
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